

The expressions "the accountant of the Department," "education authority," "certificated teacher," and "public school" shall have the like meanings as in the Education (Scotland) Acts, 1872 to 1925.

Short title,
extent,
and com-
mencement.

43.—(1) This Act shall apply to Scotland only and may be cited as the Educational Endowments (Scotland) Act, 1928.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-nine.

CHAPTER 31.

An Act to consolidate the Sale of Food and Drugs Acts. [3rd August 1928.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

GENERAL PROVISIONS.

Restrictions
on mixing
food and
drugs with
other ingre-
dients.

1.—(1) No person shall mix, colour, stain, or powder, or order or permit any other person to mix, colour, stain or powder—

- (a) any article of food with any ingredient or material so as to render the article injurious to health;
- (b) any drug with any ingredient or material so as to affect injuriously the quality or potency of the drug;

with the intent that the article of food or drug may be sold in that state.

(2) No person shall sell any article of food or drug so mixed, coloured, stained or powdered as aforesaid.

(3) If any person contravenes any of the provisions of this section, he shall be guilty of an offence and shall—

- (a) in the case of a first offence in relation to an article of food, or a drug, be liable on summary

conviction to a fine not exceeding fifty pounds;
and

- (b) in the case of any offence in relation to an article of food after conviction for a first offence in relation to an article of food, or in the case of any offence in relation to a drug after conviction for a first offence in relation to a drug, be liable on conviction on indictment to imprisonment for a term not exceeding six months :

Provided that a person shall not be liable to be convicted under this section in respect of the sale of any article of food or of any drug if he shows to the satisfaction of the court before whom he is charged that he did not know, and could not with reasonable diligence have ascertained, that the article of food or drug sold by him was so mixed, coloured, stained or powdered as aforesaid.

(4) Where any regulations made under the Public Health (Regulations as to Food) Act, 1907 (as amended by any subsequent enactment), and the enactments mentioned in that Act, prohibit or restrict the addition of any preservative or other ingredient or material to an article of food, the addition of any such ingredient or material—

7 Edw. 7.
c. 32.

- (a) if made in contravention of the regulations, shall for the purposes of this Part of this Act be deemed to render the article injurious to health;
- (b) if made to an amount not exceeding the limit (if any) specified by the regulations, shall not for the purposes of this Part of this Act be deemed to render the article injurious to health.

2.—(1) No person shall sell to the prejudice of the purchaser any article of food or any drug which is not of the nature, or not of the substance, or not of the quality, of the article demanded by the purchaser.

Prohibition
against sale
of articles
of food and
drugs not of
the nature,
substance or
quality
demanded.

(2) If any person contravenes the provisions of this section, he shall be guilty of an offence :

Provided that an offence under this section shall not be deemed to have been committed—

- (a) where any ingredient or material not injurious to health has been added to the article of food or

drug because it is required for the production or preparation thereof as an article of commerce in a state fit for carriage or consumption, and not fraudulently to increase the bulk, weight, or measure of the article of food or drug, or to conceal the inferior quality thereof;

- (b) where the food or drug is the subject of a patent in force, and is supplied in the state required by the specification of the patent, or is a proprietary medicine;
- (c) where the food or drug is unavoidably mixed with some extraneous matter in the process of collection or preparation;
- (d) where the article being whisky, brandy, rum or gin, is not adulterated otherwise than by the admixture of water, and it is proved that such admixture has not reduced the spirit more than thirty-five degrees under proof.

(3) In any prosecution under this section it shall be no defence to allege that the purchaser, having bought only for analysis, is not prejudiced. "

(4) Where any regulations made under the Public Health (Regulations as to Food) Act, 1907 (as amended by any subsequent enactment), and the enactments mentioned in that Act, prescribe the composition of any article of food intended for sale, or prohibit or restrict the addition of any preservative or other ingredient or material to any such article, the purchaser of such article shall, unless the contrary is proved, be deemed for the purposes of this section to have demanded an article complying with the provisions of the regulations as regards the presence or amount of any constituent ingredient or material specified in the regulations.

Provision as
to sale of
compounds.

3. If any person sells any compound article of food, or any compounded drug, which is not composed of ingredients in accordance with the demand of the purchaser, he shall be guilty of an offence.

Protection
from lia-
bility where
article
properly
labelled.

4.—(1) No person shall be guilty of any such offence as aforesaid in respect of the sale of an article of food or a drug mixed with any ingredient or material not injurious to health, and not intended fraudulently to increase its bulk, weight, or measure, or to conceal its inferior quality, if at the time of delivering the article

of food or drug he supplies to the person receiving it a notice, by a label distinctly and legibly written or printed on or with the article or drug, to the effect that it is mixed.

(2) For the purposes of this section, a label shall not be deemed to be distinctly and legibly written or printed if the notice of mixture given by the label is obscured by other matter on the label: but nothing in this subsection shall hinder or affect the use of any registered trade mark, or of any label which had been continuously in use for at least seven years before the first day of January nineteen hundred.

(3) The Comptroller-General of Patents, Designs and Trade Marks shall not register any trade mark purporting to describe a mixture unless it complies with the requirements of this section.

5. If any person abstracts from any article of food any part of it so as to affect injuriously its nature, substance or quality, with the intent that it may be sold in its altered state without notice, or if any person sells any article so altered without making disclosure of the alteration, he shall be guilty of an offence.

Offences in relation to the abstraction from articles of food of parts thereof.

PART II.

PROVISIONS WITH RESPECT TO SPECIAL ARTICLES.

6.—(1) Margarine, margarine-cheese and milk-blended butter, whenever sold or forwarded by any public conveyance shall be sold or consigned as margarine or margarine-cheese, or in the case of milk-blended butter under such name or names as may be approved by the Minister of Agriculture and Fisheries.

Conditions to be observed in dealings in margarine, margarine-cheese, and milk-blended butter.

(2) It shall not be lawful to manufacture, sell or expose for sale any margarine the fat of which contains more than ten per cent. of fat derived from milk.

(3) Every person dealing in margarine, whether wholesale or retail, and whether as manufacturer, importer, consignor, consignee, commission agent or otherwise, shall conform to such of the following regulations as may be applicable:—

(a) Every package containing margarine, whether open or closed, shall have the word "Margarine"

branded or durably marked on the top, bottom, and sides thereof, in printed capital letters not less than three-quarters of an inch square, the brand or mark being on the package itself and not solely on a label ticket or other thing attached thereto ;

- (b) There shall be attached to every parcel of margarine exposed for sale by retail, in such manner as to be clearly visible to the purchaser, a label marked "Margarine" in printed capital letters not less than one and a half inches square ;
 - (c) Margarine when sold by retail, save in a package duly branded or durably marked as aforesaid, shall in every case be delivered to the purchaser in a paper wrapper, and the word "Margarine" shall be printed on the outside of such wrapper, (or, if more wrappers than one are used, on the outside of the outer wrapper) in capital block letters not less than half an inch long and distinctly legible, and no other printed matter (except a statement of the weight in pursuance of any statutory requirement) shall appear on the outside of the wrapper, or, if there are more wrappers than one, of the outer wrapper ;
 - (d) Margarine shall not be described in any wrapper enclosing it, or on any package containing it, or on any label attached to a parcel thereof, or in any advertisement or invoice thereof, by any name other than either "Margarine" or a name combining the word "Margarine" with a fancy or other descriptive name approved by the Minister of Agriculture and Fisheries, and printed in type not larger than, and in the same colour as, the word "Margarine."
- (4) The requirements of paragraphs (a), (b) and (c) of subsection (3) of this section shall apply to margarine-cheese and to persons dealing therein with the substitution of "Margarine-cheese" for "Margarine" :
- Provided that, where margarine-cheese is sold or dealt in otherwise than by retail, it shall be sufficient compliance with those requirements if it is itself conspicuously branded with the words "margarine-cheese."

(5) The requirements of paragraphs (a), (b) and (c) of subsection (3) of this section shall apply to milk-blended butter and to persons dealing therein with the substitution of a name approved by the Minister of Agriculture and Fisheries for the word "margarine," save that there shall, in addition to the approved name, be printed on the outside of the wrapper referred to in paragraph (c), in such manner as the Minister of Agriculture and Fisheries may approve, such description of the article setting out the percentage of moisture or water contained therein as may be approved by the Minister.

(6) Any substances purporting to be butter or cheese which are exposed for sale and not marked in the manner in which margarine, margarine-cheese or milk-blended butter is required to be marked under this Act shall be presumed to be exposed for sale as butter or cheese as the case may be.

(7) Any person who contravenes any of the provisions of this section shall be guilty of an offence.

7.—(1) The Minister of Agriculture and Fisheries may, after such inquiry as he deems necessary, make regulations for determining what deficiency in any of the normal constituents of genuine milk, cream, butter, or cheese, or what addition of extraneous matter or proportion of water, in any sample of milk (including condensed milk), cream, butter, or cheese, or what proportion of any milk-solid other than fat in any sample of butter or milk-blended butter, shall for the purposes of this Act raise a presumption, until the contrary is proved, that, the milk, cream, butter, cheese or milk-blended butter is not genuine or is injurious to health, and an analyst shall have regard to such regulations in certifying the result of an analysis under this Act.

Power to
make regu-
lations as to
constituents
of milk,
butter,
cheese, &c.

(2) The Minister of Health may, after such inquiry as he deems necessary, make regulations for prohibiting the use as a preservative of any substance specified in such regulations in the manufacture or preparation for sale of butter, margarine, or milk-blended butter, or for limiting the extent to which, either generally or as regards any particular substance or substances,

preservatives may be used in the manufacture or preparation for sale of butter, margarine, or milk-blended butter.

(3) Any regulations made under this section shall be notified in the London Gazette, and shall also be made known in such other manner as the Minister making the regulations may direct.

(4) Any person who manufactures, sells, or exposes or offers for sale, or has in his possession for the purpose of sale, any butter, margarine, or milk-blended butter which contains a preservative prohibited by a regulation under this section, or an amount of a preservative in excess of the limit allowed by any such regulation, shall be guilty of an offence.

Registration
of factories
and whole-
sale pre-
mises.

8.—(1) All premises to which this section applies; that is to say—

- (a) factories of margarine, margarine-cheese, or milk-blended butter;
- (b) premises where the business of a wholesale dealer in margarine, margarine-cheese, or milk-blended butter is carried on;
- (c) butter factories, that is to say, premises on which by way of trade butter is blended, re-worked, or subjected to any other treatment, but not so as to cease to be butter;

shall be registered by the owner or occupier thereof with the Food and Drugs Authority, in such manner as the Minister of Health may direct; and any owner or occupier who carries on such manufacture, business or trade as aforesaid in premises not duly registered shall be guilty of an offence.

(2) Registration of premises under this section shall be forthwith notified by the Food and Drugs Authority to the Minister of Agriculture and Fisheries.

(3) Premises shall not be used as a butter factory if they form part of, or communicate otherwise than by a public street or road with, any other premises which are required to be registered under paragraph (a) or paragraph (b) of subsection (1) of this section; and if any

premises are so used, the occupier thereof shall be guilty of an offence, and the Food and Drugs Authority shall remove from the register of butter factories kept by them any premises used as a butter factory contrary to the provisions of this subsection.

9.—(1) Every occupier of a factory of margarine, margarine-cheese, or milk-blended butter, and every wholesale dealer in any such substance, shall keep a register showing the quantity and destination of each consignment of margarine, margarine-cheese, or milk-blended butter, as the case may be, sent out from his factory or place of business, and the register shall be open to the inspection of any officer of the Minister of Agriculture and Fisheries. Registration
of consign-
ments.

(2) If any such occupier or dealer—

- (a) fails to keep such a register; or
- (b) refuses to produce the register when required to do so by an officer of the Minister of Agriculture and Fisheries; or
- (c) fails to keep the register posted up to date; or
- (d) wilfully makes any entry in the register which is false in any particular; or
- (e) fraudulently omits to enter any particular which ought to be entered in the register;

he shall be guilty of an offence and liable for the first offence to a fine not exceeding ten pounds, and for any subsequent offence to a fine not exceeding fifty pounds.

10. If any substance intended to be used for the adulteration of butter is found in any butter factory, the occupier of the factory shall be guilty of an offence, and if any oil or fat capable of being so used is found it shall be deemed to be intended to be so used, unless the contrary is proved. Prohibition
of adul-
terants in
butter
factories.

11.—(1) If any butter which, when prepared for sale or consignment, contains more than sixteen per cent. of water is in any butter factory, or if any margarine which, when prepared for sale or consignment, contains more than sixteen per cent. of water is in any margarine Limit of
moisture in
butter, &c.

factory, or if any such butter or margarine is consigned from a butter factory or margarine factory, the occupier of the factory or consignor, as the case may be, shall (whether the excess of moisture is due to adulteration or not) be guilty of an offence unless he proves to the satisfaction of the court that the butter or margarine was not made, blended, reworked, or treated in the factory.

(2) Any person who manufactures, sells, or exposes or offers for sale, or has in his possession for the purpose of sale, any milk-blended butter which contains more than twenty-four per cent. of water, shall be guilty of an offence.

Restrictions
on the im-
portation of
agricultural
and other
produce.

12.—(1) If there is imported into the United Kingdom any of the following articles, namely :—

- (a) margarine or margarine-cheese, except in packages conspicuously marked “Margarine” or “Margarine-cheese,” as the case may require;
- (b) adulterated or impoverished milk or cream, except in packages or cans conspicuously marked with a name or description indicating that the milk or cream has been so treated;
- (c) condensed separated or skimmed milk, except in tins or other receptacles which bear a label whereon the words “Machine-skimmed Milk” or “Skimmed Milk,” as the case may require, are printed in large and legible type;
- (d) any adulterated or impoverished article of food to which His Majesty may by Order in Council direct that this section shall be applied, unless the same be imported in packages or receptacles conspicuously marked with a name or description indicating that the article has been so treated;
- (e) butter containing more than sixteen per cent. of water;
- (f) margarine containing more than sixteen per cent. of water, or more than ten per cent. of fat derived from milk;
- (g) milk-blended butter containing more than twenty-four per cent. of water;

- (h) milk-blended butter, except in packages conspicuously marked with such name as may be approved by the Minister of Agriculture and Fisheries for the purpose;
- (j) butter, margarine, or milk-blended butter which contains a preservative prohibited by any regulation made under this Act, or an amount of a preservative in excess of the limit allowed by any such regulation;

the importer shall be guilty of an offence.

(2) Prosecutions for offences under this section shall be undertaken by the Commissioners of Customs and Excise, and, subject to the provisions of this Act, this section shall have effect as if it were part of the Customs 39 & 40 Vict.
(Consolidation) Act, 1876. c. 36.

(3) If in any case the Commissioners of Customs and Excise are of opinion that an offence against this section has been committed, they shall communicate to the Minister of Agriculture and Fisheries for his information the name of the importer and such other facts as they possess or may obtain as to the destination of the consignment.

(4) For the purposes of this section, an article of food shall be deemed to be adulterated or impoverished if it has been mixed with any other substance, or if any part of it has been abstracted, so as in either case to affect injuriously its nature, substance, or quality:

Provided that an article of food shall not be deemed to be adulterated by reason only of the addition of any preservative or colouring matter of such a nature and in such quantity as not to render the article injurious to health.

PART III.

ADMINISTRATION.

13. The local authorities for the purposes of the execution of this Act (in this Act referred to as the Food and Drugs Authorities) are—

- (1) as respects the city of London, the common council;

- (2) as respects any other part of the administrative county of London, the metropolitan borough council;
- (3) as respects a county borough, or a borough having a separate police establishment, or a borough which had according to the census of 1881 a population of not less than ten thousand, and which had on the thirteenth day of August, eighteen hundred and eighty-eight, and for the time being has, a separate court of quarter sessions, the council of the borough;
- (4) as respects any other area, the county council.

Duty of
authori-
ties to
enforce Act.

14.—(1) It shall be the duty of every Food and Drugs Authority to put in force from time to time, as occasion may arise, the powers with which they are invested, so as to provide proper securities for the sale of food and drugs in a pure and genuine condition, and in particular to direct their officers¹¹ to procure samples for analysis.

(2) If the Minister of Health or Minister of Agriculture and Fisheries after communication with the Food and Drugs Authority is of opinion that the authority have failed to execute or enforce any of the provisions of this Act in relation to any article of food, and that their failure affects the general interests of the consumer or the general interests of agriculture in the United Kingdom, as the case may be, the Minister concerned may, by order, empower an officer to execute and enforce those provisions or to procure the execution and enforcement thereof in relation to any article of food mentioned in the order.

(3) The expenses incurred by either such Minister or his officer under any such order shall be paid by the Food and Drugs Authority to such Minister on demand, and in default such Minister may recover the amount of the expenses with costs from the authority, and the amount so paid or recovered shall be treated as expenses incurred by the authority under this Act.

(4) For the purposes of this section, an order of the Minister concerned shall be conclusive in respect of any

default, amount of expenses, or other matter therein stated or appearing.

15.—(1) It shall be the duty of every Food and Drugs Authority to appoint one or more persons as analysts of articles of food and drugs within their area (in this Act referred to as public analysts), and the authority may remove any such person. Appoint-
ment of
analysts.

(2) Every such appointment and removal shall at all times be subject to the approval of the Minister of Health who may give his approval absolutely or with modifications as to the period of the appointment, removal, or otherwise.

(3) Every person so appointed shall be a person possessing competent knowledge, skill and experience, and shall furnish such proof of competency as may from time to time be required by regulation framed by the Minister of Health; and no person shall be appointed as public analyst for any place who is engaged directly or indirectly in any trade or business connected with the sale of food or drugs in that place.

(4) The Food and Drugs Authority shall pay to every public analyst appointed by them such remuneration as may be mutually agreed upon.

(5) The council of any borough, being a Food and Drugs Authority, may agree that the public analyst appointed by any neighbouring borough or for the county in which the borough is situated, shall act for their borough during such time as the council may think proper, and the council shall make due provision for the payment of his remuneration, and if such analyst consents, he shall during such time as aforesaid be the public analyst for the borough.

16.—(1) Any medical officer of health, sanitary inspector, inspector of weights and measures, inspector of a market, or police constable, acting under the direction and at the cost of the local authority appointing him or charged with the execution of this Act may purchase any sample of any food or drug, and any such officer, inspector, or constable acting as aforesaid is in this Act referred to as a "sampling officer." Powers of
sampling.

(2) A sampling officer may take at the place of delivery any sample of any food in course of delivery

to the purchaser or consignee in pursuance of any contract for the sale thereof to the purchaser or consignee :

Provided that no sample of food other than milk shall be taken under this subsection except upon the request or with the consent of the purchaser or consignee.

(3) A sampling officer may, without going through the form of purchase, take for the purposes of analysis, samples of any butter or cheese or substances purporting to be butter or cheese which are exposed for sale and are not marked in the manner in which margarine, margarine-cheese or milk-blended butter is required to be marked under this Act.

(4) Any officer of Customs and Excise and any sampling officer (except an inspector of a market and in London an inspector of weights and measures), if he has reason to believe that any package forwarded by any public conveyance contains margarine, margarine-cheese or milk-blended butter which is not consigned in accordance with the provisions of this Act, may examine and take samples from that package, and ascertain, if necessary by submitting the same to be analysed, whether an offence under this Act has been committed.

(5) If any sampling officer applies to purchase any article of food or any drug exposed for sale or on sale by retail on any premises (including any street or open space of public resort), and tenders the price for the quantity which he requires for the purpose of analysis not being more than is reasonably requisite, and the person exposing the article or drug for sale, or having it for sale on the premises, refuses to sell to the officer such quantity thereof as aforesaid, or if the seller or consignor or any person entrusted by him for the time being with the charge of any article of food of which a sampling officer is empowered to take a sample in course of delivery refuses to allow the officer to take the quantity which he requires for the purpose of analysis, the person so refusing shall be guilty of an offence and liable to a fine not exceeding ten pounds :

Provided that, where any article of food or drug is exposed for sale in an unopened tin or package duly labelled, no person shall be required to sell it except in the unopened tin or package in which it is contained.

17.—(1) Where a sampling officer procures a sample of food or of a drug, he shall, if he suspects the sample or the article from which the sample is taken to have been sold contrary to any provision of this Act, or that the provisions of this Act have otherwise been infringed with respect to that article, submit it to be analysed by the public analyst of the place for which he acts.

Right to
have
samples
analysed.

(2) Any purchaser of an article of food or of a drug shall be entitled to submit it to be analysed by the public analyst of the place in which the purchase was made.

(3) The public analyst shall, upon payment to him of a sum not exceeding ten shillings and sixpence, as soon as practicable analyse any sample sent to him in pursuance of this Act, and shall give to the person by whom the sample is sent a certificate specifying the result of the analysis in the form set forth in the First Schedule to this Act, or a form to the like effect.

(4) Where there is no public analyst for the place for which the sampling officer acted or in which the purchase was made, the sample shall be submitted to and be analysed by the public analyst for some other place; but in such a case the sum payable shall be such sum as may be agreed.

18.—(1) The person purchasing a sample of any article with the intention of submitting it to analysis shall, after the purchase has been completed, forthwith notify to the seller or his agent who sold the sample his intention to have it analysed by the public analyst, and shall then and there divide the sample into three parts, each part to be marked and sealed or fastened up in such manner as its nature will permit, and shall—

Division of
and dealings
with
samples.

(a) if required to do so deliver one part to the seller or his agent;

(b) retain one part for future comparison;

(c) if he thinks fit to have an analysis made submit one part to the analyst.

(2) In the case of a sample taken of milk in course of delivery, or of margarine, margarine-cheese or milk-blended butter forwarded by a public conveyance,

the person taking the sample shall, if the name and address of the consignor appear on the can or package containing the article sampled, forward to him by registered parcel or otherwise a portion of the sample marked, and sealed, or fastened up.

(3) If the analyst does not reside within two miles of the residence of the person requiring the article to be analysed, the part submitted for analysis may be forwarded to the analyst by registered parcel, and the charge for the postage of such article shall be deemed one of the charges of this Act or of the prosecution, as the case may be.

Power of
Ministers
to have
articles
analysed.

19.—(1) The Minister of Health may, in relation to any matter appearing to him to affect the general interests of the consumer, and the Minister of Agriculture and Fisheries may, in relation to any matter appearing to him to affect the general interests of agriculture in the United Kingdom, direct an officer to procure for analysis samples of any article of food, and thereupon the officer shall have all the powers of a sampling officer under this Act, and this Act shall apply as if the officer were a sampling officer except that—

(a) the officer procuring the sample shall divide it into four parts, and shall deal with three of such parts in the manner directed by the last foregoing section, and shall send the fourth part to the Minister, and

(b) any fee for analysis shall be payable to the analyst by the Food and Drugs Authority of the place where the sample is procured.

(2) The Minister shall communicate the result of the analysis of any such sample to the Food and Drugs Authority, and thereupon there shall be the like duty and power on the part of the authority to cause proceedings to be taken as if the authority had caused the analysis to be made.

Powers of
Commissioners of
Customs
and Excise
to have

20.—(1) The Commissioners of Customs and Excise shall, in accordance with directions given by the Treasury after consultation with the Minister of Agriculture and Fisheries, take such samples of consignments of imported articles of food as may be necessary for the

enforcement of the provisions of this Act imposing restrictions on the importation of such articles. imported
articles
sampled.

(2) Where the Commissioners take a sample of any consignment in pursuance of such directions, they shall divide it into not less than three parts, and send one part to the importer and one part to the Government Chemist and retain one part.

(3) Where a sample taken under this section is certified by the Government Chemist to be margarine or milk-blended butter, the Commissioners of Customs and Excise shall upon receiving the certificate forthwith notify the importer thereof.

21.—(1) The provisions of this Act relating to the taking of samples, and proceedings in connection therewith, shall, in relation to milk, have effect subject to the provisions of the Second Schedule to this Act. Special pro-
visions as to
sampling of
milk.

(2) So much of any contract as requires a purveyor of milk, on a sample of his milk being taken under this Act or any enactment repealed by this Act, to send to the person from whom he procured the milk any part of such sample, or to give that person notice that a sample has been so taken, shall be void.

(3) For the purpose of this section and the said Schedule the expression "purveyor of milk" includes a seller of milk whether wholesale or by retail.

22.—(1) Any officer of the Minister of Agriculture and Fisheries or of the Minister of Health shall have power to enter at all reasonable times any premises registered under this Act, and to inspect any process of manufacture, blending, reworking, or treatment used therein, and to take samples for analysis of any butter, margarine, margarine-cheese, or milk-blended butter, or of any article capable of being used in the manufacture, treatment, or adulteration of any such article as aforesaid. Inspection
of factories.

(2) Any sampling officer of a Food and Drugs Authority shall, if specially authorised in that behalf by the authority, have the like powers of entry, inspection, and sampling as regards any premises registered with the authority as a butter factory.

(3) If the Minister of Agriculture and Fisheries has reason to believe—

(a) that on any unregistered premises there is carried on any process of manufacture, blending, reworking, or treatment or any wholesale dealing which under this Act cannot be carried on except on registered premises; or

(b) that on any premises butter is by way of trade either made or stored, and that for the purposes of this Act inspection is desirable;

the Minister may specially authorise any of his officers to enter the premises, and in that case the officer shall have the like powers of entry, inspection, and sampling as if the premises were registered.

(4) Where under this section a special authority is required, an officer of a Minister or of a Food and Drugs Authority shall not be entitled to exercise any of his powers under this section unless, if so requested by or on behalf of the occupier of the premises to be entered, he produces his authority.

Approval of names for use in connection with margarine and milk-blended butter.

23. The Minister of Agriculture and Fisheries may approve a name or names for use in connection with margarine, or under which milk-blended butter may be imported or dealt with, but the Minister shall not approve any name for any such purpose if it refers to or is suggestive of butter or anything connected with the dairy interest.

Obstruction of officers in discharge of duties.

24. Any person who wilfully obstructs or impedes any inspector or other officer in the course of his duties, or by any gratuity, bribe, promise, or other inducement prevents, or attempts to prevent, the due execution by the inspector or officer of his duty under this Act, shall be guilty of an offence.

Quarterly reports by analysts.

25. Every public analyst shall report quarterly to the authority appointing him the number of articles analysed by him under this Act during the foregoing quarter, and shall specify the result of each analysis and the sum paid to him in respect thereof, and the report shall be presented at the next meeting of the authority appointing the analyst, and every such authority shall annually transmit to the Minister of

Health at such time and in such form as the Minister may direct, a certified copy of the quarterly report.

26. The expenses of the Food and Drugs Authority under this Act shall be defrayed—

Expenses of
Food and
Drugs
Authorities.

- (a) in the case of the Common Council of the City of London and a metropolitan borough, out of the general rate;
- (b) in the case of the council of a borough, out of the borough fund or borough rate;
- (c) in the case of a county council, out of the county fund as expenses for general county purposes :

Provided that—

(i) if the county includes any borough having a separate court of quarter sessions the council whereof is a Food and Drugs Authority, the expenses shall be treated as expenses for special county purposes from contribution to which the borough shall be exempt;

(ii) if the county includes a borough having a separate police establishment but not having a separate court of quarter sessions, the council whereof is a Food and Drugs Authority, the council of the borough may retain any sums levied by the council as rating authority in pursuance of a precept issued by the council of the county so far as the precept relates to the raising of money for the purposes of this Act.

PART IV.

LEGAL PROCEEDINGS.

27.—(1) Save as otherwise expressly provided, all offences under this Act shall be prosecuted, and all fines recoverable in accordance with the Summary Jurisdiction Acts :

Prosecu-
tions and
penalties for
offences.

Provided that, where a sample has been purchased for test purposes, any prosecution under this Act in

respect of the sale thereof shall not be instituted after the expiration of twenty-eight days from the time of the purchase.

(2) Where an analyst having analysed any article has given his certificate of the result from which it appears that an offence under this Act has been committed, the person causing the analysis to be made may take proceedings under this Act before a petty sessional court having jurisdiction in the place where the article of food or drug sold was actually delivered to the purchaser or the sample was taken.

(3) A person found guilty of an offence for which no special penalty is imposed by this Act shall be liable on conviction—

- (a) in the case of a first offence, to a fine not exceeding twenty pounds; and
- (b) in the case of a second offence, to a fine not exceeding fifty pounds; and
- (c) in the case of a subsequent offence, to a fine not exceeding one hundred pounds; or if, in the opinion of the court, the offence was committed by the personal act, default, or culpable negligence of the person accused, and the court is of opinion that a fine will not meet the circumstances of the case, to imprisonment for a term not exceeding three months:

Provided that, where the offence is the importation in contravention of the provisions of this Act of butter, margarine, margarine-cheese or milk-blended butter, the maximum fine shall be either that above mentioned or at the election of the Commissioners of Customs and Excise a sum equal to the value of the goods imported bearing the same mark or description, to be estimated and taken according to the rate and price for which goods of the like kind but of the best quality were sold at or about the time of the importation.

(4) In determining whether, for the purposes of this section, an offence is to be treated as a second or subsequent offence, the rules set out in the Third Schedule to this Act shall be observed.

(5) In any prosecution under this Act the summons shall state the particulars of the offence or offences alleged, and also the name of the prosecutor, and shall not be made returnable in less than fourteen days from the day on which it is served.

(6) Where an employer is charged with an offence under Part II. of this Act, he shall be entitled, upon information duly laid by him, to have any other person whom he charges as the actual offender brought before the court at the time appointed for hearing the charge, and if, after the commission of the offence has been proved, the employer proves to the satisfaction of the court that he had used due diligence to enforce the execution of Part II. of this Act, and that the said other person had committed the offence in question without his knowledge, consent or connivance, the said other person shall be summarily convicted of the offence, and the employer shall be exempt from any penalty.

28.—(1) Where a certificate of analysis has been obtained on behalf of a prosecutor, a copy thereof shall be served with the summons.

Service and
evidence of
certificates
of analysis.

(2) Where a copy of a certificate of a public analyst is intended to be produced by a defendant, a copy thereof shall be sent to the prosecutor at least three clear days before the return day, and if it is not so sent, the court may, if it thinks fit, adjourn the hearing on such terms as may seem proper.

(3) In any proceedings for an offence under the foregoing provisions of this Act, the production by one of the parties of a certificate of a public analyst in the form prescribed by this Act shall be sufficient evidence of the facts stated therein unless the other party requires that the analyst shall be called as a witness.

(4) In any proceedings under this Act the part of the sample retained by the person who procured it shall be produced at the hearing.

(5) In any proceedings for an offence under the provisions of this Act restricting the importation of articles of food, the certificate of the Government Chemist of the result of the analysis shall be sufficient evidence of the facts therein stated unless the defendant requires

that the person who made the analysis shall be called as a witness.

(6) In any proceedings for any such offence, the certificate of the Government Chemist, or if the person who made the analysis is called as a witness, the evidence of that person, that an imported substance is margarine or milk-blended butter shall raise a presumption until the contrary is proved that the substance is margarine or milk-blended butter, and the defendant shall not be entitled to require the person who made the analysis to be called as a witness unless three clear days before the return day he gives notice to the prosecutor that he requires his attendance and deposits with the prosecutor a sum sufficient to cover the reasonable costs and expenses of his attendance, which costs and expenses shall be paid by the defendant in the event of his conviction.

Conditions
under which
warranty
may be
pleaded as
defence.

29.—(1) Subject to the provisions of this section, a defendant shall be discharged from the prosecution if he proves to the satisfaction of the court—

- (a) in the case of a prosecution under Part II. of this Act for dealing with, selling, exposing or offering for sale or having in his possession for sale margarine, margarine-cheese, or milk-blended butter, that he had purchased the article in question as butter or cheese, as the case may be, and with a written warranty or invoice to that effect, and that he had no reason to believe at the time of the commission of the alleged offence that the article was other than butter or cheese and that, at that time the article was in the same state as when he purchased it; and
- (b) in the case of any other prosecution under this Act in respect of the sale of an article, that he had purchased the article in question as the same in nature, substance and quality as that demanded of him by the person to whom he sold the article, and with a written warranty to that effect, and that he had no reason to believe at the time he sold it that it was otherwise; and that he sold the article in the same state as when he purchased it.

(2) A warranty or invoice shall only be a defence to proceedings under this Act if—

- (a) the defendant has within seven days of the service of the summons sent to the prosecutor a copy of the warranty or invoice with a written notice stating that he intends to rely on it and specifying the name and address of the person from whom he received it and has also sent a like notice of his intention to that person; and
- (b) in the case of a warranty or invoice given by a person resident outside the United Kingdom the defendant proves that he had taken reasonable steps to ascertain, and did in fact believe in, the accuracy of the statement contained therein; and
- (c) in the case of a prosecution in England or Wales in respect of a sample of milk, the defendant has within sixty hours after the sample was procured served such a notice as is prescribed in paragraph (2) of the Second Schedule to this Act.

(3) The person by whom the warranty or invoice is alleged to have been given shall be entitled to appear at the hearing and to give evidence, and the court may, if it thinks fit, adjourn the hearing to enable him to do so.

(4) Where the defendant is a servant of the person who purchased the article under a warranty or invoice, he shall be entitled to rely on the provisions of this section in the same way as his employer would have been entitled to do if he had been the defendant, provided that the servant further proves that he had no reason to believe that the article was otherwise than that demanded by the prosecutor.

30.—(1) Every person who wilfully applies to an article of food, or drug, in any proceedings under this Act, a certificate or warranty given in relation to any other article of food or drug, or who wilfully gives a label with any article of food or drug sold by him which falsely describes the article sold, shall be guilty of an offence.

False
warranties
and certifi-
cates.

(2) Every person who, in respect of an article of food or drug sold by him as principal or agent, gives to the purchaser a false warranty in writing, shall be guilty of an offence, unless he proves to the satisfaction of the court that when he gave the warranty he had reason to believe that the statements or descriptions contained therein were true.

(3) Where the defendant in a prosecution under this Act has been discharged under the provisions of this Act relating to warranties, any proceedings under this section for giving the warranty relied on by the defendant in the prosecution, may be taken as well before a court having jurisdiction in the place where the article of food or drug to which the warranty relates was purchased for analysis as before a court having jurisdiction in the place where the warranty was given.

Power of
court to
require
analysis by
Government
Chemist.

31. The court before which any proceedings are taken, or an appeal heard, under this Act may, if it thinks fit and shall upon the request of either party, cause any article of food or drug to be sent to the Government Chemist who shall make an analysis, and give a certificate of the result of the analysis; and the expense of such analysis shall be paid by the prosecutor or the defendant as the court may by order direct.

Application
of fines.

32. Any fine recovered under this Act—

- (a) in the case of a prosecution by a sampling officer of the Food and Drugs Authority, shall be paid to that officer, to be accounted for by him to the authority and applied towards the expenses of the authority under this Act;
- (b) in the case of any other prosecution, shall be paid and applied in accordance with the law regulating the application of fines for offences punishable summarily:

Provided that any part of a fine recovered in respect of an offence under Part II. of this Act may, if the court so directs, be paid to the prosecutor to reimburse him for the costs of obtaining the analysis and any other reasonable expenses to which the court considers him entitled.

33. Nothing in this Act, save as otherwise expressly provided, shall affect any contract or any rights or remedies belonging to the parties thereto : Saving for contracts.

Provided that in any action brought by any person for a breach of contract on the sale of any article of food or of any drug, he may recover either alone or in addition to any damages recoverable by him the amount of any fine to which he may have been sentenced in respect of the transaction, together with any costs incurred by him in or about his defence, if he proves that the article of food or drug the subject of the transaction was sold to him as and for an article of food or drug of the same nature, substance, and quality as that demanded from him, and that he purchased it not knowing it to be otherwise and afterwards sold it in the same state in which he purchased it, so, however, that the defendant in the action shall be at liberty to prove that the conviction was wrongful or that the amount of costs incurred was unreasonable.

PART V.

MISCELLANEOUS.

34. In this Act, unless the context otherwise requires— Definitions.

The expression “food” includes every article used for food or drink by man, other than drugs or water, and any article which ordinarily enters into or is used in the composition or preparation of human food, and also includes flavouring matters and condiments :

The expression “drug” includes medicine for internal or external use :

The expression “butter” means the substance usually known as butter, made exclusively from milk or cream, or both, with or without salt or other preservative, and with or without the addition of colouring matter :

The expression “cheese” means the substance usually known as cheese, containing no fat derived otherwise than from milk :

The expression “margarine” means any article of food, whether mixed with butter or not, which resembles butter and is not milk-blended butter :

The expression “margarine-cheese” means any substance, whether compound or otherwise, which is prepared in imitation of cheese, and which contains fat not derived from milk :

The expression “milk-blended butter” means any mixture produced by mixing or blending butter with milk or cream other than condensed milk or cream :

The expression “importer” includes any person who, whether as owner, consignor or consignee, agent or broker, is in possession of, or in anywise entitled to the custody or control of, the article.

Application
to Scotland.

35. This Act shall apply to Scotland subject to the following modifications:—

- (a) The expression “defendant” shall mean “defender” and include “respondent” :
- (b) The expression “information” shall mean “complaint” :
- (c) References to the Minister of Health shall be construed as references to the Scottish Board of Health; and references to the Minister of Agriculture and Fisheries shall be construed as references to the Board of Agriculture for Scotland :
- (d) “Borough” shall mean a burgh :
- (e) The reference to the London Gazette shall be construed as a reference to the Edinburgh Gazette :
- (f) The following section shall be substituted for section thirteen:—

The local authorities for the purposes of the execution of this Act (in this Act referred to as the Food and Drugs Authorities) are, as respects a burgh, the town council thereof, and as respects any other area, the county council :

- (g) Section twenty-one (relating to the sampling of milk) shall not apply, and in lieu thereof the following provisions shall have effect:—

(1) Every person who, himself or by his servant, in any highway or place of public resort sells milk or cream from a vehicle or from a can or other receptacle shall have conspicuously inscribed on the vehicle or receptacle his name and address, and in default shall be guilty of an offence and liable to a fine not exceeding two pounds :

(2) Every tin or other receptacle containing condensed, separated or skimmed milk must bear a label, clearly visible to the purchaser, on which the words “ machine-skimmed “ milk ” or “ skimmed milk,” as the case may require, are printed in large and legible type; and if any person sells or exposes or offers for sale condensed, separated or skimmed milk in contravention of this provision, he shall be guilty of an offence and liable to a fine not exceeding ten pounds :

- (h) The following section shall be substituted for section twenty-six:—

The expenses of the Food and Drugs Authorities under this Act shall be defrayed in burghs out of the police assessment, and in counties out of the county general assessment :

- (i) Notwithstanding anything in section twenty-nine, where proceedings are taken under this Act in respect of milk, cream, skimmed milk, separated milk or butter-milk, a warranty or invoice shall not be available as a defence :

- (j) Subject to the provisions of subsection (3) (b) of section one and of section twelve, offences under this Act may be prosecuted either—

(i) in the sheriff court or in any court in which a stipendiary magistrate sits as judge at the instance of the procurator fiscal, or of the person who caused the analysis to be

made from which it appeared that an offence had been committed; or

(ii) in a burgh or police court at the instance of the burgh prosecutor:

(k) The following subsection shall be substituted for section thirty-two:—

Every fine recovered under this Act shall be paid to the clerk of the court, to be accounted for by him to the treasurer of the county general assessment or the police assessment of the burgh as the court may direct:

Application
to Northern
Ireland.

36.—(1) Such of the provisions of this Act as relate to the importation of articles of food and to proceedings for offences in relation thereto, shall apply to Northern Ireland subject to the following modification, that is to say, references to the Minister of Agriculture and Fisheries shall be construed as references to the Ministry of Agriculture for Northern Ireland.

(2) Save as aforesaid, this Act shall not extend to Northern Ireland.

Repeals.

37. The enactments mentioned in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule:

Provided that nothing in this repeal shall affect any regulation, registration, appointment, sample, analysis, direction, order, certificate or approval made, effected, taken or given under any of the enactments hereby repealed, but every such regulation, registration, appointment, sample, analysis, direction, order, certificate or approval shall have effect as if made, effected, taken or given under this Act.

Short title
and com-
mencement.

38.—(1) This Act may be cited as the Food and Drugs (*Adulteration*) Act, 1928.

(2) This Act shall come into operation on the first day of January, nineteen hundred and twenty-nine.

SCHEDULES.

FIRST SCHEDULE.

Section 17.

FORM OF CERTIFICATE OF PUBLIC ANALYST.

To*

I, the undersigned, public analyst for the
do hereby certify that I received on the day of
19 , from† , a sample of
for analysis (which then weighed‡), and have
analysed it, and declare the result of my analysis to be as
follows:—

I am of opinion that it is a sample of genuine
or,

I am of opinion that the said sample contained the parts as
under, or the percentages of foreign ingredients as under.

Observations§

As witness my hand this day of
A.B.,
at

* Here insert the name of the person submitting the article for analysis.

† Here insert the name of the person delivering the sample.

‡ When the article cannot be conveniently weighed, this passage may be erased, or the blank may be left unfilled.

§ Here the analyst may insert at his discretion his opinion as to whether the mixture (if any) was for the purpose of rendering the article portable or palatable, or of preserving it, or of improving the appearance, or was unavoidable, and may state whether in excess of what is ordinary, or otherwise, and whether the ingredients or materials mixed are, or are not, injurious to health.

In the case of a certificate regarding milk, butter, or any article liable to decomposition, the analyst shall specially report whether any change had taken place in the constitution of the article that would interfere with the analysis.

Sections 21
and 29.

SECOND SCHEDULE.

SPECIAL PROVISIONS AS TO MILK.

(1) Where a sample of milk is procured from a purveyor of milk, he shall, on being required to do so by the person by whom or on whose behalf the sample was taken state the name and address of the seller or consignor from whom he received the milk.

(2) The local authority in whose district the sample was taken, may take or cause to be taken one or more samples of milk in course of transit or delivery from such seller or consignor.

Within sixty hours after the sample of milk was procured from the purveyor he may serve on the local authority a notice stating the name and address of the seller from whom he received the milk and the time and place of delivery to the purveyor by the seller or consignor of milk from a corresponding milking, and requesting them to take immediate steps to procure, as soon as practicable, a sample of milk in the course of transit or delivery from the seller or consignor to the purveyor, unless a sample has been so taken since the sample was procured from the purveyor, or within twenty-four hours prior to the sample being procured from the purveyor:

Provided that the purveyor shall not have any such right to require that such a sample shall be taken in cases where the milk from which the sample procured from the purveyor was taken was a mixture of milk obtained by the purveyor from more than one seller or consignor.

If a purveyor has served on the local authority such a notice as aforesaid, and the local authority have not procured a sample of milk from the seller or consignor in accordance with the foregoing provisions, no proceedings under this Act shall be taken against the purveyor in respect of the sample of milk procured from him.

(3) Any sample of milk so taken in the course of transit or delivery shall be submitted for analysis to the analyst to whom the sample procured from the purveyor is or was submitted.

(4) If proceedings are taken against the purveyor of milk, a copy of the certificate of the result of the analysis of every sample so taken in the course of transit or delivery shall be furnished to the purveyor, and every such certificate shall, subject to the provisions of section twenty-eight of this Act, be sufficient evidence of the facts stated therein, and shall be admissible as evidence on any question whether the milk sold by the purveyor was sold in the same state as he purchased it.

(5) The local authority of the district in which the first-mentioned sample was taken may, instead of, or in addition to, taking proceedings against the purveyor of milk, take proceedings against the seller or consignor.

2ND SCH.
—cont.

(6) If a sample of milk of cows in any dairy is taken in course of transit or delivery from that dairy, the owner of the cows may, within sixty hours after the sample of milk was procured, serve on the local authority a notice requesting them to take immediate steps to procure as soon as practicable a sample of milk from a corresponding milking of the cows, and the foregoing provisions shall apply accordingly :

Provided that the person taking the sample shall be empowered to take any such steps at the dairy as may be necessary to satisfy him that the sample is a fair sample of the milk of the cows when properly and fully milked.

(7) For the purposes of this Schedule expressions have the same meaning as in the Milk and Dairies (Consolidation) Act, 1915.

THIRD SCHEDULE.

Section 27.

RULES FOR DETERMINING WHETHER OFFENCES ARE SECOND OR SUBSEQUENT OFFENCES.

1. Any offence under section six or section eight of this Act (except an offence under paragraph (d) of subsection (3) of section six, or an offence under section six so far as it relates to milk-blended butter or an offence under subsection (3) of section eight) shall, in relation to any other offence under either of those sections except as aforesaid be deemed to be a second or subsequent offence.

2. Any offence under paragraph (d) of subsection (3) of section six, or under section six so far as it relates to milk-blended butter, or under subsection (4) of section seven, subsection (3) of section eight, section ten or section eleven of this Act, shall, in relation to any other offence under any of the said provisions, be deemed to be a second or subsequent offence.

3. Save as aforesaid, an offence under this Act shall not be deemed to be a second or subsequent offence unless the former offence or offences were an offence or offences under the same provision of this Act.

Section 37.

FOURTH SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
38 & 39 Vict. c. 63.	The Sale of Food and Drugs Act, 1875.	The whole Act, except sections thirty, thirty-one and thirty-six.
42 & 43 Vict. c. 30.	The Sale of Food and Drugs Act Amendment Act, 1879.	The whole Act.
50 & 51 Vict. c. 29.	The Margarine Act, 1887 -	The whole Act.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act, 1892.	In section four hundred and thirty-two the words "under the Sale of Food and Drugs Act, 1875, and also".
62 & 63 Vict. c. 51.	The Sale of Food and Drugs Act, 1899.	The whole Act.
7 Edw. 7. c. 21	The Butter and Margarine Act, 1907.	The whole Act.
4 & 5 Geo. 5. c. 46.	The Milk and Dairies (Scotland) Act, 1914.	Section twenty-seven.
5 & 6 Geo. 5. c. 66.	The Milk and Dairies (Consolidation) Act, 1915.	Section nine and the Third Schedule.
11 & 12 Geo. 5. c. 32.	The Finance Act, 1921 -	Section twenty-three.
11 & 12 Geo. 5. c. 42.	The Licensing Act, 1921 -	Section ten.
17 & 18 Geo. 5. c. 5.	The Sale of Food and Drugs Act, 1927.	The whole Act.